TENTATIVE RULINGS

Petra Rios
v.
Pureserve Building Services, Inc.
24CV003470
(consolidated with 24CV004490)

Motion for Final Approval of Class Action and PAGA Settlement

Motion for Class Counsel Award and Service Award

Hearing Date: July 31, 2026 (continued from June 5, 2026)

NOTE RE TENTATIVE RULINGS

Each of these tentative rulings becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE RELATED HEARING VACATED**. You must notify the court by email or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Motion for Final Approval of Class Action and PAGA Settlement

The unopposed motion of Plaintiff Petra Rios ("Plaintiff") for final approval of the Stipulation of Settlement of Class and PAGA Action Claims and Release of Claims ("Agreement") is **GRANTED,** subject to the following:

First, as detailed in the Tentative Ruling on Plaintiff's Motion for Class Counsel Award and Service Award, which is fully incorporated herein by reference, the Court is inclined to award litigation expenses totaling $10,156.04 ($9,656.04 for actual litigation expenses and $500 for expected expenses) and a $5,000 service award.

Second, and despite the parties' supplemental filings, it remains unclear to the Court whether Defendant Pureserve Building Services, Inc. ("Defendant") included the employer-side payroll taxes with its second installment payment on April 1, 2026, in addition to the Gross Settlement amount. The Agreement states that Defendant will deposit the Gross Settlement Amount into a Qualified Settlement Fund ("QSF") established by the Settlement Administrator in three equal installments. [Agreement, Exh. 1 to Lapuyade Decl. at §§ I, subd. OO; III, subd. A.3; and III, subd. L.] Furthermore, Defendant's share of the employer-side payroll taxes is separate from the Gross Settlement Amount and will be paid into the QSF along with the second installment. [*Id*. at § III, subd. A.4.] Although the Settlement Administrator received the first two installments from Defendant, and the third is pending [Nava Decl. at ¶ 19], it is unclear from the motion whether Defendant paid its share of the employer-side payroll taxes in addition to the Gross Settlement Amount into the QSF with the second installment. The parties shall inform the Court at the July 31, 2026, hearing on this motion whether Defendant has met this obligation.

Therefore, the motion is **GRANTED** pending the above revisions and the additional clarification request. The final accounting of the settlement fund distribution is set for February 2, 2027, at 10 a.m., in Department 14, unless the parties agree to a different date.

Plaintiff shall prepare the Proposed Order and Proposed Judgment consistent with this Tentative Ruling.

Motion for Class Counsel Award and Service Award

The unopposed motion of Plaintiff Petra Rios ("Plaintiff") for an order awarding JCL Law Firm, APC ("Class Counsel") $131,666.67 for attorneys' fees and up to $25,000 for reimbursement of actual litigation expenses is **GRANTED IN PART AND DENIED IN PART**. Class Counsel is awarded the full amount of the attorneys' fees requested ($131,666.67) and its actual and anticipated litigation expenses totaling $10,156.04. As to Plaintiff's motion for a class representative award, the Court has considered her supplemental filings and recognizes that her estimated total payment decreased significantly. Nonetheless, the motion is **GRANTED IN PART** in that she is awarded $5,000 instead of the requested $10,000.

1. Attorneys' Fees.

Class Counsel requests attorneys' fees of $131,666.67, representing one-third of the Gross Settlement Amount. [Stipulation of Settlement of Class and PAGA Action Claims and Release of Claims ("Agreement"), Exh. 1 to Lapuyade Decl. at § I, subd. G.] Counsel argues that the award is fair, reasonable, and within the typical range for such cases. [Lapuyade Decl. at ¶ 8.] Counsel computes a cross-check multiplier of 1.16, which he states is significantly below the 2.13 multiplier approved by the Supreme Court in *Laffitte v. Robert Half Internat., Inc.* (2016) 1 Cal.5th 480. [Ibid.]

When cross-checking the requested fees against the lodestar amount [*see In re Mercury Interactive Corp.* (9th Cir. 2010) 618 F.3d 988, 992], the Court uses the attorney's hourly rate in this community [*see Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71]. This Court customarily awards a $550 hourly rate.

A review of Class Counsel's "Time and Billing Journal" [Exh. 3 to Lapuyade Decl.] shows that the time spent on each itemized task was reasonable, supporting the reasonableness of Class Counsel's lodestar estimate. Each counsel's hourly rate exceeds the $550 rate in Monterey County. If this rate were applied across the 146.7 hours worked by all counsel, the lodestar amount would be $80,685. This lower figure would produce a multiplier of 1.63. Additionally, Class Counsel expects to incur another $11,000 to $16,500 to complete this case. [Lapuyade Decl. at ¶ 48.]

Either the 1.16 or the 1.63 multiplier falls within the range of previously approved multipliers. A reasonable multiplier is appropriate here as it reflects the skill exercised by counsel to obtain a settlement where the average class member receives a recovery averaging $676.83 for 296 Class Members. [*See Donovan v. Poway Unified School Dist.* (2008) 167 Cal.App.4th 567, 628.] Thus, a cross-check of the potential fee award against Class Counsel's lodestar, with a reasonable multiplier of 1.16 (or 1.63 under a reduced fee award), supports a finding that Class Counsel's request for a $131,666.67 fee award is reasonable. On this ground, the motion is **GRANTED**.

2. Litigation Expenses.

The Agreement allows for recovery of "costs of up to $25,000." [Agreement, Exh. 1 to Lapuyade Decl. at § I, subd. G.] In the motion, Class Counsel does not specify a particular reimbursement amount but, consistent with the Agreement, requests "up to $25,000.00." [Motion at 1:7.] Plaintiff counsel Jean-Claude Lapuyade's declaration states that only $10,156.04 in costs has been incurred, which includes $500 expected fees to conclude this case. [Lapuyade Decl. at p. 3, fn. 2; see also id. at ¶ 4 and attached Exh. 2, and Zakay Decl. at ¶ 6 and attached Exh. C.] Therefore, the Court **GRANTS** $9,656.04 for actual litigation expenses and $500 for expected expenses, totaling $10,156.04. [*Ibid*.] As per the Agreement, the remaining $14,843.96 of the "costs of up to $25,000" will be distributed to Settlement Class Members. [Agreement, Exh. 1 to Lapuyade Decl. at § III, subd. N.10.]

3. Class Representative Service Award.

Plaintiff seeks a $10,000 award for her role as the class representative.

The rationale for making enhancement or incentive awards is that the class representative should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. [*Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 806.] Factors to consider when deciding if such an award is appropriate include (1) the actions the plaintiff has taken to protect the interests of the class, (2) the extent to which the class has benefited from those actions, and (3) the amount of time and effort the plaintiff has spent pursuing the litigation, along with the financial and other risks to the class representative in starting the suit. [*Id*. at 804.]

As this Court previously noted in its Tentative Rulings dated November 20, 2025, and June 3, 2026, the $10,000 class representative service award requested by Plaintiff is significantly higher than what this Court usually grants. Initially, Plaintiff submitted a declaration stating that she dedicated approximately 20 to 25 hours to the case. [Plaintiff's Decl., filed 5/8/26, at ¶ 12.] She states that although she did not attend the mediation, she made herself available for it. [*Id*. at ¶ 11.] She has also been actively involved in the case, reviewed court filings, and spent considerable time addressing issues raised during litigation and the settlement process. [*Id*. at ¶¶ 10, 12.] Plaintiff considers the service award to partly compensate her for releasing the Released Class Claims, along with her general release and waiver of claims. [*Id*. at ¶ 13.]

This motion was continued to give the parties time to file supplemental papers addressing a discrepancy in the Class Data that was discovered the day before the June 5, 2026, final approval hearing. In summary, the "data discrepancy caused the Class Members' Individual Settlement Payment allocation rate to slightly increase, and the Aggrieved Employee's share of the PAGA Payment allocation rate to slightly decrease." [Supp. Razma Decl. at ¶ 5; see Supp. Nava Decl. at ¶¶ 4-11).] As a result, "Plaintiff's estimated total payment decreased from approximately $1,249.25 to approximately $218.61." [Supp. Razma Decl. at ¶ 8.] Given that reduction in Plaintiff's recovery, Plaintiff's counsel urges the Court to award a service fee of $10,000. [*Id.* at ¶¶ 7-12.]

Despite Plaintiff's efforts and her reduced recovery, a service fee award of $10,000 would amount to roughly $400 to $500 per hour for her work. Therefore, although Plaintiff's contributions are recognized, the motion is **GRANTED IN PART,** and the Court finds that a $5,000 award adequately compensates Plaintiff for her services on behalf of the class members.

Conclusion.

Plaintiff's motion is **GRANTED IN PART AND DENIED IN PART**. Plaintiff shall prepare the Proposed Order and Proposed Judgment consistent with this Tentative Ruling.